FORM 33 (RULE 8-1 (9)) - APPLICATION RESPONSE (PAGE 1 OF 2)

Court File No. S-240123 / Vancouver Registry | Respondents: Pacific Developments Corp. et al.

PART 1: ORDERS CONSENTED TO: None.

PART 2: ORDERS OPPOSED: The Respondents oppose all orders requested in Part 1 of the Notice of Application.

PART 3: ORDERS ON TERMS

The Respondents propose that the application be dismissed, or in the alternative, that production of any internal banking records be subject to a strict confidentiality undertaking in the form of the Canadian Commercial Protective Order model, with commercially sensitive subcontractor pricing redacted.

PART 4: FACTUAL BASIS

1. The Corporate Defendant has already delivered an exhaustive List of Documents comprising 487 documents disclosing all executed construction contracts, architect sign-off certificates, and municipal permits.
2. The Plaintiff has been provided with certified monthly summary accounting reports prepared by independent auditors demonstrating that all cash-call funds were allocated to active trade contractor accounts.
3. The granular daily banking records sought by the Plaintiff contain proprietary banking arrangements, line of credit terms, and confidential subcontractor fee margins that are completely irrelevant to the pleaded issues.

FORM 33 (RULE 8-1 (9)) - APPLICATION RESPONSE (PAGE 2 OF 2)

Part 5: Legal Basis & Material Relied On

PART 5: LEGAL BASIS

1. Supreme Court Civil Rule 7-1(1): A party is only required to list documents that could be used by any party at trial to prove or disprove a material fact, or that assist in determining that fact.
2. Supreme Court Civil Rule 1-3 (Proportionality): Ordering supplementary production of hundreds of internal banking slips and raw communications would be disproportionate, oppressive, and unnecessary.
3. Dorfman v. Rosen, 2011 BCSC 1489 at para. 17: Production will not be ordered where the application represents a speculative fishing expedition into proprietary business operations.

PART 6: MATERIAL TO BE RELIED ON

1. Affidavit #1 of John Doe, sworn November 3, 2026.
2. The Response to Civil Claim filed July 20, 2026.

The Respondents estimate that the application will take twenty (20) minutes.

Dated: November 4, 2026 | David Vance, Counsel for the Defendants (Respondents)